

**BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY
SCHOOL DISTRICT RESOLUTION**

The Brecksville-Broadview Heights City School District Board of Education (“the Board”) met in _____ session on the ____ day of _____, 2020, with the following members present:

_____ moved for the adoption of the following Resolution:

RESOLUTION #_____

**A RESOLUTION OF THE BOARD TO CARRY OUT BOARD MEETINGS VIA
ELECTRONIC MEANS DURING THE COVID-19 STATE OF EMERGENCY**

WHEREAS, on March 9, 2020 the Governor of the State of Ohio issued Executive Order 2020-01D (the “Order”), declaring a state of emergency to protect the well-being of the citizens of the Ohio from the dangerous effects of COVID-19; and

WHEREAS, subsequent to issuance of the Order, the legislature put in place uncodified emergency provisions via passage of Ohio House Bill (HB) 197 (“HB 197”) providing public bodies the authority to hold and attend meetings by means of teleconference, video conference, or any other similar electronic technology (“electronic means”) in lieu of carrying out such meetings in person; and

WHEREAS, HB 197 provides public bodies the authority to carry out meetings by such electronic means during the period of the emergency declared by the Order issued March 9, 2020, but not beyond December 1, 2020, if the period of the emergency continues beyond that date; and

WHEREAS, HB 197 provides that board members attending meetings by electronic means are considered present as if they were attending in person, are permitted to vote, are counted for quorum, and any public action taken by such electronic means under such emergency provisions has the same effect as if it were taken in an open meeting of the public body; and

WHEREAS, the Ohio legislature extended HB 197’s virtual meeting authority for public bodies through July 1, 2021 by passing Ohio House Bill 404 (“HB 404”), which was signed by the Ohio Governor and became immediately effective on November 22, 2020; and

WHEREAS, the important governance functions and public business of public bodies still must continue even in the exigent circumstances created by the COVID-19 outbreak; and

WHEREAS, the Board, in an effort to continue the important public business of the public body while still safeguarding the health and well-being of the all members of the school district community, wishes to avail itself of the opportunity to hold and attend meetings by electronic means in order to carry out such important governance functions and public business in compliance with HB 404 and any subsequent legislation and all other requirements set forth by Ohio’s Open Meetings Act (“OMA”) that are not in conflict with the provisions of HB 404 and any subsequent legislation; and

WHEREAS, pursuant to Board policy 0131, Legislative, Ohio Revised Code (RC) 3313.20 and HB 197/404 and any subsequent legislation, and due to challenges created by the necessity to carry out such meetings by electronic means, the Board wishes to temporarily suspend its policy 0169.1, Public Participation at Board Meetings, relevant provisions of its policy 0167, Voting, with regard to in-person voting requirements, and any and all other provisions of Board policies and procedures that are in conflict with the provisions of HB 404 or subsequent legislation for the duration of the applicability of the emergency provisions and to the extent that the Board determines to avail itself, as a public body, of the ability to conduct official public meetings via electronic means in accordance with provisions of HB 404 or subsequent legislation; and

WHEREAS, the Board strongly agrees with and abides by the standards set forth by OMA, including such emergency provisions as set forth by HB 404, and endeavors to fully comply with its requirements to the extent possible in light of the exigent public health and safety circumstances created by the COVID-19 epidemic through compliance with OMA provisions not in conflict with the provisions of HB 404 or subsequent legislation.

NOW, THEREFORE, BE IT RESOLVED that pursuant to Ohio House Bill (HB) 404 (“HB 404”) or subsequent legislation, the Board shall carry out its meetings either by a combination of in person attendance (with appropriate social distancing, limitation on the number of in-person attendees, and safety precautions to the extent possible) paired with electronic attendance, or solely by the electronic means set forth in the uncodified emergency provisions for the duration of the declared state of emergency created by the COVID-19 pandemic, for the time period from the date of this official action through but not beyond July 1, 2021 or subsequent extension made by the Ohio Legislature and approved by the Governor.

BE IT FURTHER RESOLVED, that the Board hereby suspends its policy 0169.1, Public Participation at Board Meetings, relevant provisions of its policy 0167, Voting, with regard to in-person voting requirements, and any and all other Board policies and procedures in conflict with the provisions of HB 404 or subsequent legislation for purposes of compliance with Ohio’s Open Meetings Act (“OMA”) for the duration of the applicability of such emergency provisions

provided in HB 404 or subsequent legislation for the conduct of public meetings during the state of emergency.

BE IT FURTHER RESOLVED, that the Board President, the Superintendent (or his designee), Chief Operating Officer, and/or the Treasurer are authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution.

BE IT FURTHER RESOLVED, that it is hereby found and determined that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an electronic meeting of this Board in full compliance with the provisions of HB 404, and that all deliberations of this Board and any of its committees that resulted in such formal action took place in a meeting open to the public by electronic means or in executive session as permitted by Ohio law.

BE IT FURTHER RESOLVED, that this Resolution shall take effect and be in force from and after the earliest period allowed by law.

Upon roll call, the vote resulted as follows:

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

ADOPTED by the Brecksville-Broadview Heights City School District Board of Education this ____ day of _____, 2020.

CERTIFICATION OF TREASURER

I, Craig G. Yaniglos, Treasurer of the Board of Education of the Brecksville-Broadview Heights City School District, hereby certify that the foregoing is a true and correct copy of a Resolution duly adopted by said Board of Education at its meeting on _____, 2020.

Treasurer
Brecksville-Broadview Heights City School District

Board of Education